

**From Object to Protocol:
A Genealogy of the Artwork as Specification**

PIATRA . INSTITUTE

May 2026

Abstract

The identity of an artwork has shifted, in successive episodes, from the finished object toward the rule-bound specification. The view that an artwork is a singular artifact expressing an artist's interiority is a late and historically specific configuration. Earlier regimes treated images as ritual instruments, dynastic technologies, devotional interfaces, and workshop products whose identity was fixed by function and rule. Twentieth-century conceptual and score-based art relocated the work into the certificate, the score, and the instruction; generative code art added editioned variability through deterministic seeds. A third, emerging migration extends the same structure to model-mediated work, in which the artwork is an executable package of prompts, reference assets, model recommendations, seed ranges, and licenses, realized by a model. We call this form *latent score art* and treat it as a subcategory of AI art. The first two migrations rest on a large inventory of named, conserved works; the third rests on a few verifiable instances (the trained-model and protocol works of Holly Herndon and Mat Dryhurst, and the autonomous system Botto) and on hypothetical cases, and is presented as an emerging category. We define a *protocol* as a specification that is substrate-relative, bounded, transferable, editioned, and governed, and show how each migration adds properties to this inventory. On the legal side, authorship remains narrowly defined while the art-historical account of authorship widens, and the two should be kept distinct. Markets must handle model drift, changing governance terms, and uncertainty about what a buyer owns. Criticism must treat training corpora, model versions, and prompt grammar as properties of the medium.

1. Introduction

Modern common sense holds that an artwork is a finished object made by an artist who has poured an inner life into outward form. The painting hangs on the wall, the photograph is the print, the film is the final cut, and the song is the master recording. On this view the work is what the visitor sees, the buyer takes home, and the museum conserves; whatever precedes the object is preparation and whatever follows it is reception.

This intuition is often taken to be the default human relation to images. It is a specific configuration, assembled over centuries, that became culturally dominant only in the late modern period. Before it, and beneath it now, images functioned as ritual instruments, presence-bearing interfaces, dynastic technologies, devotional supports, and workshop products whose identity was set by liturgy, contract, or canon. The bounded expressive object is one configuration of art among several.

We argue further that the locus of the work has been moving, over long periods, from the artifact to the specification. By *specification* we mean a rule-bound description of how to produce or select admissible realizations. The movement is uneven. It advances in the conceptual and score-based art of the twentieth century, accelerates in the generative code art of the late twentieth and early twenty-first centuries, and reaches an emerging form in AI artworks in which the trained model, the protocol, or the package of prompts, references, model recommendations, seeds, and licenses constitutes the work. This third form is younger and less institutionally settled than the first two,

and its evidence is weighed accordingly below. An image generated by such a work is a realization of the specification.

Four theses about the contemporary moment can be distinguished: a *reconfiguration* thesis, in which AI art redistributes older functions of images without abolishing them; a *protocol* thesis, in which the locus of the work moves from object to rule-bound specification; a *distributed-authorship* thesis, in which the novelty lies in exposing the assemblage of artist, dataset, model, prompt, seed, user, and platform; and a *market-structure* thesis, in which the executable package becomes the new saleable unit. The four overlap without being equivalent. Reconfiguration describes a rate of change, distributed authorship an attribution problem, and market structure a commercial form. The protocol thesis describes the ontological change beneath all three, namely where the work is located.

The argument makes no claim that AI tools complete art or end it. It claims that they make explicit a property of art that has operated intermittently for at least a century, and arguably much longer. The certificate, the score, and the instruction, once visible only at the margins of conceptual art, become common practice when the artist's deliverable is an executable package and the buyer's possession is a license to instantiate it.

2. Images before the autonomous object

The earliest evidence of human image-making does not show a stable, object-centred practice. It points to images embedded in cult, memory, and social coordination, with motives that remain underdetermined by the evidence. Reading the modern object intuition back into prehistory, and concluding that cave images were paintings in the modern sense, goes beyond what the evidence supports. They may have been. They may also have been ritual implements, mnemonic technologies, hunting protocols, or supports for visions in altered states. The interpretive frameworks of Lewis-Williams (2002) and Leroi-Gourhan (1964) are strong as hypotheses and weak as conclusions. The archaeology supports a more cautious claim: image-making deep in caves was bound to use, place, and rite in ways that do not reduce to autonomous expression.

Sacred and imperial regimes make the point sharper. Egyptian tomb programmes, Mesopotamian temple complexes, early imperial Chinese ritual bronzes, Byzantine icon canons, and dynastic South Asian sculpture treated images as instruments that sustained a cosmos, mediated divinity, secured dynastic continuity, or stabilised rule. In these regimes the work is inseparable from its function: a tomb relief moved into a museum remains the same artifact and becomes a different cultural item. Belting (1994) argues at length that many premodern images were *presence-bearing interfaces* before they were aesthetic objects, and that the modern art-historical category was later imposed on them from outside. Gell (1998) generalises the point anthropologically, treating art objects as indexes of social agency whose meaning lies in the relations they mediate.

Medieval workshop labour extends the pattern. Painters of altarpieces, manuscript illuminations, and church frescoes worked under canons of subject, posture, and material so restrictive that recognisable individual hands appear only intermittently in the record. The work was the altarpiece as

installed, the illumination as bound, the fresco within its programme. Anonymity in such regimes reflects a different distribution of authorship: workshop, patron, religious order, and canon together make the work, and the painter is one participant in that distribution, in the sense in which Strathern (1988) describes agency and personhood as distributed across social relations.

Against these regimes the modern object intuition appears local. It assumes that the artwork is fully present in the artifact, that production reduces to a single named author, and that function lies outside identity. None of these assumptions holds in pre-object regimes. A tomb image is incomplete without the tomb, a workshop altarpiece without the altar, and a ritual mark without the rite.

This pattern bears directly on the protocol thesis. If the work has often been a function-anchored, rule-governed product whose identity is set by canon, ritual, or commission, then the modern object-centred configuration is a deviation from a longer norm. Specification was always present; the modern arrangement classed it as “preparation” and elevated the object to “the art”. Measured against the historical record, that arrangement is recent, however dominant it became in the institutions of the past two centuries.

These regimes invite no nostalgia; they were embedded in social orders that included slavery, theocracy, and dynastic violence. The narrower point suffices. The question of what counts as the work has been answered very differently across history, and the answers that predate modern expressivism give priority to the rule, the place, the function, the rite, and the canon, that is, to the specification.

3. Formation of the object configuration

The configuration that produced the modern object intuition was assembled in stages between the Renaissance and the late nineteenth century under specific institutional pressures.

Renaissance patronage personalised the artist. Vasari's *Lives* (1550, 1568) established a vocabulary of named masters and their distinctive hands. The Renaissance artist did not yet hold sovereignty over the work, however, and operated inside contracts that specified subject, materials, dimensions, deadlines, and sometimes pigments. The work was a contracted object whose terms were set by the patron and whose execution was shared among master, workshop, and apprentices. The named master mattered, but as one node in a contracted production system.

Early modern markets changed the pressure. As Dutch genre painting, prints, and engraved reproductions reached urban bourgeois interiors, the artwork became a portable commodity. Studios began producing for stock as well as on commission, and pricing, attribution, and inventory became routine commercial practices. A buyer could now carry the artifact into a domestic interior, and the work travelled independently of its original context. Portability was the first step toward the object as such: the artwork as separable, transportable, owned, displayed, and exchanged. Bourdieu (1984, 1996) traces the institutional consequences in his account of how markets in taste organise legitimacy, and Benjamin ([1936] 1968) describes how mechanical reproduction detaches

the image from its place in tradition. The underlying ontological shift is more elementary: to be traded across contexts, a thing must be treated as fully present in itself.

Romanticism completed the configuration. The artist became a singular interiority whose work expressed an inner truth accessible by no other means. Originality displaced fidelity to canon, and rupture displaced continuity with workshop tradition. The art object became the trace of a unique subjectivity that the viewer reconstructs in the encounter. By the later nineteenth century the object intuition was fully assembled: the work is the artifact, made by a singular artist, expressive of an interior life, and tradable as property. Modernism intensified this picture even as it tested its limits.

The configuration depends on a market for portable commodities, an art-historical apparatus that records named individuals, a critical discourse that values interiority, and an institutional infrastructure of galleries, museums, salons, and criticism that consecrates particular objects as art. Danto (1981) and Dickie (1974) later made the dependence on this infrastructure explicit, arguing that what makes an object art is its place in a theoretical and institutional context. Without these supports the configuration fails; with them it dominates. By the early twentieth century its dominance was so complete that practices centred elsewhere, such as the ritual mark, the score, the instruction, and the system, appeared anomalous within the art world, although they stand closer to art's longer history.

The twentieth-century movements that first pushed against the object-centred configuration recovered the protocol from premodern regimes and adapted it to a market-saturated context. Viewed over the long term, their innovation was a return to an older condition in which the work is often a rule and the artifact its realization.

4. Conceptual and score-based art

Duchamp supplied the precedent early in the century. With the readymade, above all *Fountain* (1917), the work became the artist's act of selection and designation; the choice, the title, and the signature constituted the work, and the manufactured object was its occasion (de Duve 1996). The conceptual and score-based practices of mid-century inherited this move and made it repeatable, turning a single gesture of designation into a standing specification that others could realise.

In the 1950s and 1960s several practices began to relocate the work from the object to the instruction. They differed in materials and ideology and converged on one structure: the artist authors a specification, and others, sometimes the artist and often not, realise it.

John Cage's *4'33"* (1952) is the canonical case. The score specifies a duration of silence to be performed on any instrument, and the realization consists of whatever ambient sound enters the performance space. Cage's chance procedures, drawn from coin tosses, the *I Ching*, and star charts, delegate realization to procedural systems (Cage 1961). The work is the score and its procedure, and each performance is an instantiation. *4'33"* is fully present whenever the score is performed, anywhere and by anyone.

Fluxus extended the approach into a movement. George Brecht's event scores of the early 1960s, collected in *Water Yam* (Brecht 1963), instruct a performer, reader, or viewer to undertake brief, often domestic actions. La Monte Young's *Composition 1960 #10* reads in full: "Draw a straight line and follow it" (Young [1960] 1963). Yoko Ono's *Grapefruit* (1964) is a published collection of instruction pieces. The Museum of Modern Art's documentation of Fluxus repeatedly notes that the scores were meant to be performed by anyone with interpretive freedom and that no single performance exhausted a score's identity (Museum of Modern Art n.d.). The score is the work, and performances are its realizations.

Sol LeWitt's wall drawings made the structure explicit in a market context. LeWitt (1967) wrote that "the idea becomes a machine that makes the art." From 1968 onward his wall drawings were conceived as instructions, often diagrammatic, to be executed by draftspeople on a designated wall. The collector or institution acquires a certificate of authenticity and the instructions, and on installation the drawing is executed by hands other than LeWitt's. SFMOMA's documentation describes LeWitt acquisitions as a certificate plus instructions, with the visible drawing executed on site and occasionally re-executed elsewhere when the institution moves (San Francisco Museum of Modern Art n.d.). The Whitney's documentation reaches the same conclusion: the work consists of the instruction set, the certificate, and the right to realise it (Whitney Museum of American Art n.d.).

Lawrence Weiner's textual works go further. Many are presented as printed sentences, such as "A 36" x 36" REMOVAL TO THE LATHING OR SUPPORT WALL OF PLASTER OR WALLBOARD FROM A WALL" (1968), which the artist allows to be realised, left unrealised, or realised differently in different contexts. His "Statement of Intent" leaves these options to the receiver (Weiner [1968] 2007). The work is a textual specification with explicit permissions for realization.

Several features recur across these practices. The work has a clear identity before any execution: it is announced, signed, dated, and sometimes published. Realization is delegated, often to non-artists, under rules that govern admissible variation. The artifact, when there is one, counts as a realization. The institutional apparatus was rebuilt around this arrangement through certificates of authenticity, edition rules, performance rights, and installation protocols. A collector of a LeWitt owns the right and the instructions to realise a wall drawing and does not own any particular execution of it.

Paper, language, and persuasion suffice to drive this first migration. Many of the resulting pieces produce striking visible realizations, so the object remains in play; what the migration removes is the identification of the work with any single realization. The work moves one level up, into the score, the instruction, the certificate, or the textual specification, and generates artifacts from there.

Institutions that own and conserve these works organise themselves around protocols. Registrars maintain certificate files, conservators specify conditions for re-execution, and curators choose which performance of which score, by which performer, will represent a piece in a given exhibition. The protocol becomes the unit of curatorial care. The practice took shape half a century ago

and the gallery system has long since absorbed it, so AI-mediated work arrives in a system that already knows how to handle scores.

5. Generative code art

The second migration begins with practices that delegate realization to procedural systems running on computers. The earliest sustained example is Harold Cohen's AARON, developed from the early 1970s into the 2010s, which produced drawings autonomously according to rules that Cohen wrote and revised over decades (Cohen 1995). AARON generated the realizations and Cohen authored the system. In any sustained art-historical sense the work is the system, with its rule sets, colour logic, and compositional grammar, and individual prints are realizations.

Through the 1980s and 1990s generative practices proliferated, often outside the gallery system, in the demoscene, software art, glitch art, evolutionary art, and agent-based animation. Galanter (2003) defines generative art as practice in which the artist uses a system of rules, code, randomness, or autonomous machines to produce or contribute substantially to a work. Generative art is thus continuous with the conceptual and score-based migration, with the substrate moved from human performers and instruction sheets to procedural systems running on hardware.

Two platforms make the protocol character of generative code art explicit and tradable. Art Blocks, founded in 2020, hosts long-form generative art on the Ethereum blockchain. The artist publishes a script, collectors mint outputs from it, and each mint passes a unique hash, derived deterministically from the transaction, into the script as its seed. The output is fixed once minted, because the same script and seed produce the same image, so each mint is a deterministic realization within the artist's system. Art Blocks documentation describes the artist's deliverable as an "algorithmic system" (Art Blocks n.d.), and the description is accurate.

fxhash, founded in 2021, extends the model with explicit support for "open-form" generative art, in which realizations may evolve over time, accept user input, or respond to environmental data. Its documentation distinguishes fixed-iteration tokens, each corresponding to one rendered output, from forms in which the rendered state continues to change after minting (fxhash n.d.). In both modes the work comprises the script, the edition logic, and the seed-handling rules; the rendered output is what one collector receives at a particular time.

This migration adds three properties absent from score-based art:

- (1) **Determinism.** Given a script and a seed, the realization is fixed and reproducible, and the variability the protocol admits is itself rule-governed.
- (2) **Editioning at scale.** A platform can issue thousands of realizations from one specification, each different and each inside the space defined by the script. The edition expands from a hand-pulled print run to a deterministic family of outputs.
- (3) **Substrate visibility.** The script and runtime are visible, in many cases as open source on chain, and become objects of interest in their own right. Collectors and critics study scripts as part of the work alongside the rendered tokens.

The structure established by Cage, Brecht, LeWitt, and Weiner is unchanged: the specification is the work and the rendered output a realization. Generative code art makes this structure visible at a new institutional scale (the platform), with new technical guarantees (deterministic realization) and a new economic form (on-chain edition logic), and in doing so industrialises it.

The platform infrastructure adds one further element. By keeping the script, the seed-derivation rules, and the minting log together in a public ledger, platforms such as Art Blocks make the protocol an inspectable, durable, and transferable object. The uncertainty that conceptual art faced about the certificate, whether it was the work or evidence of the work, is resolved in this infrastructure: the script is the work, the chain serves as the certificate, and the rendered token is the realization. This clarification remains available to later generative practices, including AI-based ones, whether or not blockchain platforms persist.

6. Latent score art

The third migration extends the protocol structure to model-mediated generation. The artist authors a specification comprising a prompt, reference assets, a negative prompt, a model recommendation, a seed range, edition rules, and a license. The substrate is a generative model such as Stable Diffusion, Midjourney, Flux, or an audio or video model. The collector or audience runs the protocol against the substrate, often with configuration choices of their own, and obtains a realization. We call this form *latent score art*.

In this form the package is the work. Its identity does not reside in the prompt, the rendered image, the model, or the seed taken separately; it resides in the assembled, signed, and editioned package. The artist's signature attaches to the specification, and the collector holds a license to instantiate it on terms the artist sets. A realization is one image, film, or sound, or a family of them, drawn from the bounded space of possibilities the specification defines.

The components of the package map one-to-one onto older specification-based forms:

Component	Specification analogue
Prompt	Score, textual instruction
Negative prompt	Constraint clause
Reference assets (images)	Visual canon, stage design
LoRA / adapter	Style sheet, rehearsal annotation
Model recommendation	Designated instrument
Seed or seed range	Performance index, edition number
Edition rules	Print-run policy
License terms	Performance rights
Versioned package	Edition certificate
Generated artifact	Realization, instantiation, performance

Several entries need comment. The *model* is the substrate and corresponds to the designated instrument of a Cage or Brecht score: a score for piano cannot be performed identically on cello, and a prompt-score for Stable Diffusion 1.5 cannot be performed identically on Midjourney v6. The substrate is therefore part of the work. The *seed* corresponds to the performance index of an edition and selects one realization from the population the protocol admits. The *LoRA* or *adapter* corresponds to a rehearsal annotation, a constraint or additional training that biases the substrate toward the protocol's intended grammar. The *license* corresponds to performance rights and specifies who may instantiate the work, where, how often, and for what economic purpose.

Latent score art is a narrower category than AI art in general. Many AI works are sold as static images, rendered once by the artist and then signed, editioned, and exhibited as artifacts. Such works belong to the older configuration in which the artwork is the rendered object, and that practice is legitimate in its own terms. Latent score art denotes works whose identity is the executable specification and whose rendered output is acknowledged by artist and collector as one realization in a population.

The evidence for this category differs from the evidence for the first two migrations. Those rest on a large inventory of named, dated, institutionally conserved works that the reader can check. Latent score art is younger, and its strict commercial form, in which an artist ships a signed, editioned package and a buyer runs it against a designated substrate to obtain a licensed realization, is still consolidating. We therefore treat the third migration as an *emerging* category, evidenced by a small number of verifiable works in which the generative system or trained model, and no single rendered output, is the exhibited and acknowledged artwork. Its structural descent from score-based and generative code art is clear, while its market and conservation conventions remain unsettled.

Three works anchor the category. Holly Herndon and Mat Dryhurst's *xhairymutantx* (2024), commissioned for the Whitney Biennial and hosted on the Whitney's artport, is a text-to-image model fine-tuned on deliberately distorted portraits of Herndon. The work is the model and its governing concept: visitors enter prompts, the model returns warped realizations, and the project feeds these back into the wider training ecology. No single rendered image constitutes the work (Whitney Museum of American Art 2024). The same artists' *The Call* (Serpentine, 2024 to 2025) trains choral AI models on recordings from fifteen United Kingdom community choirs, presents the training protocols and collectively created materials as the artefacts, and binds the work to a Data Trust that distributes rights between choir contributors and model users; governance is part of the work itself (Serpentine Galleries 2024). *Botto* (2021 onward), conceived by Mario Klingemann with the software collective ElevenYellow and governed by the BottoDAO, is an autonomous generative system whose weekly outputs are filtered by a community taste model and minted; its 2024 Sotheby's exhibition sold the system's realizations while the system remains the standing artwork (Sotheby's 2024). The three differ, since one foregrounds the model, one the governance protocol, and one the autonomous pipeline, and none is yet a turnkey product that a buyer runs. They share the relevant structure: the conserved or exhibited work is a specification on a learned substrate, and each rendered output is a realization.

Two hypothetical cases make the strict package form concrete; neither is presented as an existing work. The first is a *world-generation kit* for film: a character grammar (reference faces, body specifications, costume sheets), a shot grammar (lens, light, colour logic), scene-generation rules, model recommendations, seed protocols for repeatability, and a license governing commercial and non-commercial reuse. A buyer would render the film at a time of their choosing, on their preferred substrate, within the rules of the kit, so that different renderings are different performances of the same work. Its lineage runs directly from Brecht's event scores and LeWitt's instruction sets, with the substrate moved to contemporary models. The second is a music protocol specifying a prompt grammar, a recommended audio model, a tempo range, instrument substitutions, and seed groupings, so that each rendered track is a realization and the protocol is the work.

The structure of these works is continuous with the gallery practice of the past sixty years; the substrate is new. The model is opaque, statistical, trained on vast corpora, and continually updated, which raises two issues that classical scores avoid. The first is *substrate drift*: a Stable Diffusion 1.5 prompt does not perform identically on Stable Diffusion 3, and one prompt can yield very different results across model updates. The second is *substrate opacity*: the realization is not deterministic in the way an Art Blocks script is, and prompts are less transparent than Fluxus event scores. Section 9 returns to both.

These differences make protocol design harder without changing the form of the artist's task, which remains the authoring of a bounded specification for realization on a designated substrate, with rules, edition logic, and license. What is specific to the present case is that the substrate is a learned model, the bounds are partly statistical, and the license must address conditions, such as model availability and the lineage of training data, that earlier scores did not face.

7. Definition of a protocol

A *protocol*, in the sense used here, is a rule-bound specification with five properties:

1. **Substrate-relative.** The protocol designates an execution medium: a body, a performer, an interpreter, a runtime, or a model. Realization on a different substrate yields, by default, a different work, and substitution is allowed only where the protocol explicitly permits it.
2. **Bounded.** The protocol declares which variations between realizations are admissible. La Monte Young's instruction "Draw a straight line and follow it" admits enormous variation in scale, place, and time and excludes drawing a curve. An Art Blocks script admits only the realizations its code can generate from valid seeds.
3. **Transferable.** Parties other than the author can perform the protocol, which distinguishes it from a private working method. Score-based art made transferability a public commitment, and certificates of authenticity and edition rules institutionalised it.
4. **Edited.** The protocol determines a population of realizations, finite or infinite, with rules for indexing them. The edition is the protocol's mode of existence in time.

5. **Governed.** The protocol carries explicit rights and conditions of use: who may instantiate it, on what terms, for what economic purpose, and with what attribution. These conditions belong to the work because they bound which realizations are licit, so the license is a constituent of the work's ontology.

Each migration added one or more of these properties. Pre-object regimes already operated with substrate-relativity, boundedness, and governance, embedded in ritual, canon, and institution, but did not always provide explicit transferability or formal editioning. Score-based art added explicit transferability and formalised boundedness in language. Generative code art added deterministic editioning and made substrate-relativity transparent through inspectable code. Latent score art adds large-scale, model-mediated editioning and requires elaborate governance covering licenses, model versioning, and attribution of training data.

The definition works as a diagnostic. To decide whether an AI work is a latent score artwork or a static AI image, one examines the five properties. If the artist has signed and editioned a substrate-relative, bounded, transferable, and governed specification, and the rendered image is one realization of it, the work is latent score art. If the artist signs and sells a single rendered image while keeping the specification private, the work belongs to the older object configuration, made with new tools. Both practices are legitimate and occupy different places in the ontology.

The definition also applies to older works. Cage's 4'33" is a protocol: substrate-relative (any instrument), bounded (silence for the indicated duration), transferable (any performer), editioned (each performance), and governed (rights held through Cage's publisher). LeWitt's wall drawings, Art Blocks scripts, and working models in algorithmic music are protocols in the same sense. The migration traced here is the spread of an old ontology to new substrates.

8. Legal, market, and aesthetic consequences

8.1 Legal authorship

The legal account of authorship is narrower than the art-historical one. The U.S. Copyright Office (2023) has held that prompts alone, without further human selection, arrangement, and authorship, do not provide enough creative control to ground copyright. The Office also acknowledges that human selection, arrangement, editing, and incorporation of one's own material can ground protectable authorship in the resulting work. Other jurisdictions are developing related positions.

Two errors should be avoided. The first treats the legal answer as the art-historical one. Copyright is one institutional response, designed for adjudication and enforcement, and does not settle who or what makes a work; even before AI, copyright treated ghost-written texts and large collaborative films in ways that departed from art-historical attribution.

The second error disregards the legal frame because the art-historical one is richer. Latent score artworks circulate through markets, contracts, and institutions that need legal handles. The protocol thesis suggests a working position. A latent score artwork has at least four sources of authorship: the artist who designs the specification, the dataset whose statistical regularities are encoded in

the substrate, the model whose weights generate realizations, and the licensee whose configuration choices select among admissible realizations. A legal frame that recognises the first and fourth (the artist's protocol and the licensee's selections) and treats the second and third as instruments is workable, and it is closer to the art-historical account than a frame that treats the rendered image as authorless because no one held a brush.

8.2 Market structure

Three market problems are characteristic of latent score art. The first is *prompt decay*: a Midjourney update or a change of Stable Diffusion checkpoint can degrade or alter the behaviour of a previously well-tuned prompt. Reports of volatility in prompt marketplaces (Bejerano 2025; Prompt-Base n.d.) show the consequence: if the work is a prompt sold for use with a specific commercial model, model updates can erode its value without warning. The remedy is to treat the substrate as part of the protocol and to specify in the package which model versions are valid execution targets. Open-weight models with reproducible checkpoints are especially suitable.

The second is the *buyer's question* of what is actually owned. The plausible answers form a ladder of robustness:

- A bare prompt pack (text only): cheap, copyable, fragile.
- A licensed generation kit (prompt, references, recommended seeds, license): stronger, provided the license defines the substrate.
- A limited-edition score (numbered package with formal edition rules and certificate): shaped for the art market and protected against copying by certificate provenance.
- A subscription canon kit (the package plus periodic updates as the substrate changes): mitigates substrate drift.
- An on-chain edition (script, weights or model reference, and license, all hashed and registered): robust attribution and provenance.
- A boxed physical edition (printed score, physical assets, certificate, possibly hardware substrate): the strongest prestige signal and the closest to gallery practice.

These options can be combined, and most viable latent score artworks are likely to join licensed kits with subscription updates and certificate-based editions. The market form is still emerging. The protocol thesis describes it without prescribing it; the designs that last will be those that limit substrate drift while preserving editionability.

The third is *governance creep*. The license and metadata that govern a latent score artwork are part of the work, and as legal and platform constraints on training data, model licenses, and end use change, the package's governance layer must change with them. A latent score artwork is therefore a more heavily administered object than a Cage score, while sharing its structure: in both, the rights and conditions of performance belong to the work's identity.

8.3 Aesthetic ontology

Reading latent score art well requires reading the substrate. Style is visibly inherited from training corpora, and the artist's hand is one factor among many. A model trained on one distribution of art-historical reproductions renders certain tendencies even when the prompt does not ask for them, and a model trained on another distribution renders others. Analysing a latent score artwork without analysing its substrate leaves half the work unread. The required approach is medium-specific criticism in the line of Greenberg ([1960] 1993), Krauss (1986), and Manovich (2018), applied to a substrate that is statistical and learned instead of chemical and mechanical; Zylinska (2020) makes a related case for reading AI art through the technical and economic systems that produce it.

The term *latent space*, used carefully, names a real feature of the substrate: the high-dimensional internal representation over which the model interpolates. Used loosely, it becomes a metaphor that obscures what the model does. Criticism attentive to protocols asks how a protocol uses the substrate's specific representations: which neighbourhoods it visits, which recurrent modes it invokes, and which regions of the model's distribution it amplifies. A well-made prompt-score takes these features into account deliberately.

9. Limitations: opacity, substrate drift, and platform persistence

The protocol thesis describes a real migration and has limits.

Opacity. A Fluxus event score is fully transparent: anyone reading it knows what counts as a realization. A LeWitt instruction is largely transparent, since the diagram constrains realization tightly. An Art Blocks script is technically transparent, with its code on chain, even when its visual output is hard to predict. A prompt run against a closed-weight model is opaque twice over: its interaction with the model is not fully predictable, and the model cannot be inspected. Latent score artworks are therefore harder to read as protocols, and the artist's specification cannot guarantee outcomes as a deterministic script can. Where the work's identity is meant to be the protocol, aesthetic and ethical considerations favour open-weight models.

Substrate update. Models change, and a protocol that depends on a specific version of a closed model is subject to the operator's update cycle. Open-weight checkpoints permit reproducible substrates, but the operational and legal infrastructure for archiving models over the long term remains undeveloped. Conservation of latent score art is an open problem.

Persistence of the object. Many AI works will continue to be made and sold as static images within the object configuration, and they retain their integrity there. The protocol thesis concerns a different site, the one at which AI is changing what art is, and latent score art is the narrower category in which that change is visible.

Legal narrowness. The narrow legal account of authorship in AI works hinders robust contracts for latent score artworks, particularly in jurisdictions that do not recognise selection and arrangement

as authorship. The art-historical account is richer but has no legal force. Practical work in this area requires drafting that anticipates judicial and regulatory change.

Platform ephemerality. Prompt marketplaces, NFT platforms, and model-sharing hubs may not prove durable, and the history of digital art includes many platforms that disappeared along with the work they hosted. The institutional frame for latent score art is still under construction, and it is unclear which substrates and platforms will last long enough to support the archival and curatorial care that museums give to LeWitt or Cage.

These limits define the scope of the thesis. The migration from object to protocol is real, uneven across substrates, contested in courts, and dependent on infrastructure whose long-term form is undetermined.

10. Conclusion

The migration described here leaves the art object in place: objects continue to be rendered, exhibited, framed, and sold. What changes is the location of the work. In premodern regimes the work was a function-anchored, rule-governed product whose identity lay in canon and rite. In the modern object regime the work was the artifact and the artist's hand. In conceptual and score-based art the work moved to the score and the certificate, and in generative code art further into the script and its seed-handling logic. In latent score art the work is the executable package of prompt, references, model, seeds, edition rules, and license.

The migration recentres the work without abolishing the object, which becomes one realization among many. The artist's task extends beyond producing finished artifacts to authoring bounded generative systems and the rights that govern them. The collector's possession includes a license to instantiate as well as whatever hangs on the wall. The institution's curatorial unit becomes the protocol, with its admissible realizations, conservation conditions, and governance, and the artifact is one item among its holdings.

The modern intuition that an artwork is a finished object expressing an artist's inner life survives in part. Some works still fit it and will continue to. A growing share of significant work is likely to take the form of specifications, in which the artist's intentions are encoded in rules and protocols in place of brushstrokes and objects. On the genealogy traced here, this is the more common historical condition of art, and the object configuration of the past two centuries is the exception.

References

- Art Blocks. n.d. "Art Blocks Platform Documentation." n.d. <https://docs.artblocks.io>.
- Bejerano, Pablo G. 2025. "Se venden y se compran instrucciones para las IAs: así son los mercados de prompts." *El País*, April 8. <https://elpais.com/tecnologia/2025-04-08/se-venden-y-se-compran-instrucciones-para-las-ias-asi-son-los-mercados-de-prompts.html>.
- Belting, Hans. 1994. *Likeness and Presence: A History of the Image Before the Era of Art*. Translated by Edmund Jephcott. University of Chicago Press.

- Benjamin, Walter. (1936) 1968. "The Work of Art in the Age of Mechanical Reproduction." In *Illuminations*, edited by Hannah Arendt. Harcourt, Brace & World.
- Bourdieu, Pierre. 1984. *Distinction: A Social Critique of the Judgement of Taste*. Harvard University Press.
- Bourdieu, Pierre. 1996. *The Rules of Art: Genesis and Structure of the Literary Field*. Stanford University Press. <https://doi.org/10.1515/9781503615861>.
- Brecht, George. 1963. *Water Yam*. Fluxus.
- Cage, John. 1961. *Silence: Lectures and Writings*. Wesleyan University Press.
- Cohen, Harold. 1995. "The Further Exploits of AARON, Painter." *Stanford Humanities Review* 4 (2): 141–58.
- Danto, Arthur C. 1981. *The Transfiguration of the Commonplace: A Philosophy of Art*. Harvard University Press.
- Dickie, George. 1974. *Art and the Aesthetic: An Institutional Analysis*. Cornell University Press.
- Duve, Thierry de. 1996. *Kant After Duchamp*. MIT Press.
- fxhash. n.d. "fxhash Documentation: Open-Form Generative Art." n.d. <https://docs.fxhash.xyz>.
- Galanter, Philip. 2003. "What Is Generative Art? Complexity Theory as a Context for Art Theory." *Proceedings of the 6th Generative Art Conference (GA2003)* (Milan).
- Gell, Alfred. 1998. *Art and Agency: An Anthropological Theory*. Clarendon Press.
- Greenberg, Clement. (1960) 1993. "Modernist Painting." In *The Collected Essays and Criticism, Volume 4: Modernism with a Vengeance, 1957–1969*, edited by John O'Brian. University of Chicago Press.
- Krauss, Rosalind E. 1986. *The Originality of the Avant-Garde and Other Modernist Myths*. MIT Press.
- Leroi-Gourhan, André. 1964. *Le geste et la parole*. Albin Michel.
- Lewis-Williams, David. 2002. *The Mind in the Cave: Consciousness and the Origins of Art*. Thames and Hudson.
- LeWitt, Sol. 1967. "Paragraphs on Conceptual Art." *Artforum* 5 (10): 79–83.
- Manovich, Lev. 2018. *AI Aesthetics*. Strelka Press.
- Museum of Modern Art. n.d. "Fluxus Collection Documentation." n.d.
- Ono, Yoko. 1964. *Grapefruit: A Book of Instructions and Drawings*. Wunternbaum Press.

- PromptBase. n.d. "PromptBase Prompt Marketplace." n.d. <https://promptbase.com>.
- San Francisco Museum of Modern Art. n.d. "Sol LeWitt Wall Drawing Documentation." n.d.
- Serpentine Galleries. 2024. "Holly Herndon & Mat Dryhurst: The Call." Serpentine North, 4 October 2024 – 2 February 2025. <https://www.serpentinegalleries.org/whats-on/holly-herndon-mat-dryhurst-the-call/>.
- Sotheby's. 2024. "Exorbitant Stage: Botto, a Decentralized AI Artist." Auction, New York, 17–24 October 2024. <https://www.sothebys.com/en/buy/auction/2024/exorbitant-stage-botto-a-decentralized-ai-artist>.
- Strathern, Marilyn. 1988. *The Gender of the Gift: Problems with Women and Problems with Society in Melanesia*. University of California Press. <https://doi.org/10.1525/california/9780520064232.001.0001>.
- U.S. Copyright Office. 2023. "Copyright Registration Guidance: Works Containing Material Generated by Artificial Intelligence." *Federal Register* 88 (51): 16190–94. <https://www.federalregister.gov/documents/2023/03/16/2023-05321/copyright-registration-guidance-works-containing-material-generated-by-artificial-intelligence>.
- Vasari, Giorgio. 1550. *Le vite de' più eccellenti architetti, pittori, et scultori italiani*. Lorenzo Torrentino.
- Vasari, Giorgio. 1568. *Le vite de' più eccellenti pittori, scultori e architettori*. Giunti.
- Weiner, Lawrence. (1968) 2007. "Declaration of Intent." In *Lawrence Weiner: As Far as the Eye Can See*. Whitney Museum of American Art.
- Whitney Museum of American Art. 2024. "Holly Herndon and Mat Dryhurst: xhairymutantx." Whitney Artport. <https://whitney.org/exhibitions/xhairymutantx>.
- Whitney Museum of American Art. n.d. "Sol LeWitt Wall Drawing Documentation." n.d.
- Young, La Monte. (1960) 1963. "Composition 1960 #10 to Bob Morris." In *An Anthology of Chance Operations*, edited by La Monte Young and Jackson Mac Low. New York.
- Zylinska, Joanna. 2020. *AI Art: Machine Visions and Warped Dreams*. Open Humanities Press. <http://www.openhumanitiespress.org/books/titles/ai-art/>.